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Act No. 86 (H.744). An act relating to procedures for release after arrest

Subjects: Criminal procedures; arrest without warrant

This act makes an amendment to the Vermont Rules of Criminal Procedure regarding the affidavit or sworn statement that a law enforcement officer is required to provide to a judge who is making a decision about the temporary release of an arrestee. The act provides that the procedures and standards established by the presiding judge of each unit may require that the officer's affidavit or sworn statement include the charge or charges that the prosecuting attorney intends to file and may require that the affidavit also include any conditions of release, including bail or an order to hold without bail, that the prosecuting attorney is requesting.

Effective Date: July 2, 2026